



DECISION

Complaint No. : POS/2285/KE/127/2022

Name and Address of the Complainant : Mr. Ghulam Sarwar Solangi, House No. R-593, Street No.04, Near Zainab-ul-Quran School, Sector 6-A, Bhains Colony, Matka Pali Road, Shah Latif Town, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED INACTION ON THE COMPLAINT SUBMITTED IN SBCA FOR ACTION AGAINST THE BUILDER (M/S. SHADAB DEVELOPERS) FOR NOT HANDING OVER POSSESSION OF BOOKED PLOT NO. R-330, FALAK NAZ PROJECT.**

THE COMPLAINT

Mr. Ghulam Sarwar Solangi filed a complaint against M/s. Shadab Developers (DL-2479), the builder of the project *Gulshan-e-Falaknaz* (Survey Nos. 485-490, Deh Joraji, Bin Qasim Town, District Malir, Karachi). The complainant alleged that he is not being given possession of his booked Plot No. R-330, Block S (120 sq. yds.), despite full payment, as well as withholding of related documents and delay in development works etc. He, therefore, solicited intervention of this office in the matter.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. While such report was still awaited, the builder filed his report.

3. The builder M/s. Shadab Developers had informed SBCA, that complainant's matter stood resolved by refunding the deposited amount to the complainant. Documentary evidence, including copies of cheques and written acknowledgment by the complainant, was also submitted by the builder to the SBCA and also submitted to this Office. The complainant also appeared in person and confirmed the details of payment and refund.

FINDINGS

4. The complainant had booked the subject plot in 2003 by depositing a total amount of Rs. 300,000/-, paid in installments, with the last installment made in 2006. No further payments were made by him after 2006. The builder, in view of non-completion of payments, cancelled the booking and subsequently refunded the deposited amount in full. The complainant acknowledged receipt of the refunded amount.

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DECISION

5. In view of the above findings, and based on the complainant's own admission of having received refund of his deposited amount, the complaint case is disposed of as redressed.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated

26.11, 2025

